**IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI**
**COURT-V**

**Item No.-502**

CP (CAA) No. 144/230/232/ND/2019

**IN THE MATTER OF:**

Itron Metering Solutions India Pvt Ltd. and Itron India Pvt. Ltd **....Applicant**

**SECTION**

U/s 230-232 **Order delivered on 07.01.2022**

**CORAM:**
**SHRI ABNI RANJAN KUMAR SINHA**
**HON'BLE MEMBER (JUDICIAL)**

**SHRI AVINASH K. SRIVASTAVA,**
**HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**

For the Applicant : Mr. Gyanendra Kumar, Adv., Ms. Shikha Tandon, Adv; Mr. Robin Grover

For the Respondent : Adv. Priyadarshini Dewan for RD, Hemlata Rawat Advocate for OL, Easha Kadian, Sanjay Kumar, Standing Counsels for Income Tax Department along with Himanshu, Adv.

**ORDER**

Heard the Ld. Counsel appearing for the RD. Ld. Counsel for the RD submits that the department has no objection. We further notice that vide order dated 26.11.2021, a direction was given to the RD to file an additional affidavit regarding the no objection but it has not been complied as yet. We further notice that the matter was adjourned for 21.12.2021 and a direction was also given but it has not been complied. Therefore, the RD is directed to comply the direction failing which the order shall be passed for disobedience of the direction of the Bench against the RD. The RD is directed to file an additional affidavit within a week from today. List the matter on **20.01.2022.**

-Sd/- -Sd/-

**(AVINASH K. SRIVASTAVA)** **(ABNI RANJAN KUMAR SINHA)**
**MEMBER (T)** **MEMBER (J)**

Khushboo